

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 1, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**CAPITAL ONE, N.A. vs. EMERSON PAYUMO
Case No. CL25-10147**

Motion to Judgment on the Pleadings

TENTATIVE RULING

Plaintiff CAPITAL ONE, N.A.'s unopposed Motion for Judgment on the Pleadings is GRANTED. Judgment shall enter against the Defendant EMERSON PAYUMO in the principal sum of \$11538.79, plus court costs of \$501.00, for a total judgment of \$12,039.79.

**ESTHER PRYOR vs. JOHN SILVA
Case No. CU24-07774**

Motion for Entry of Judgment

TENTATIVE RULING

The unopposed motion for entry of judgment is granted, subject to the following adjustments from the proposed order submitted by Plaintiff for this motion:

1. The judgment itself cannot be recorded to effectuate the conveyance of title rights held by the Defendant to the Plaintiff. Instead, should Defendant fail to appear and sign in the presence of a notary public a conveyance deed within a reasonable time after notice of entry of this order, the court will appoint an

Elisor to sign such a conveyance deed. Blueberry Properties, LLC v. Chow (2014) 230 Cal.App.4th 1017, 1020-1021; Solano County Local Rule 17.6.

2. The Referee will not be discharged and his bond exonerated until his distribution to Defendant of the net amount to which Defendant is entitled under the terms of the Stipulation earlier signed by the parties.

Plaintiff is to amend the proposed order to reflect these new terms.

**JEFF OSUNA; ET AL. vs. RIVER DELTA UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU24-09522**

Demurrer to Third Amended Complaint;
Motion to Strike Portions of Third Amended Complaint

TENTATIVE RULING

Demurrer

Defendants' unopposed demurrer to the third amended complaint is sustained without leave to amend.

"[S]tates and state officers sued in their official capacity are not considered persons under section 1983 and are immune from liability under the statute by virtue of the Eleventh Amendment and the doctrine of sovereign immunity." (*Venegas v. County of Los Angeles* (2004) 32 Cal.4th 820, 829, italics in original.) A California school district is considered an arm of the state for purposes of the 11th Amendment and shares the State's immunity from suit under section 1983. (*Kirchmann v. Lake Elsinore Unified Sch. Dist.* (2000) 83 Cal.App.4th 1098, 1115.) When an entity enjoys Eleventh Amendment immunity under section 1983 in federal court, it enjoys the immunity in state court as well. (*Id.* at 1103-1104.) This Eleventh Amendment immunity applies to suits against states for failure to comply with the Americans with Disabilities Act. (*Bd. of Trs. v. Garrett* (2001) 531 U.S. 356, 360.)

All of Plaintiffs' claims against Defendants are barred. Defendant River Delta Unified School District is an arm of the state for purposes of the 11th Amendment and Defendants Wright, Lamera, and Cornelson have been sued in their official capacities. To the extent that Plaintiffs intended to sue Defendants Wright, Lamera, or Cornelson in their individual capacities, Plaintiffs have not alleged any conduct performed outside of their official capacities that might allow for personal liability.

Plaintiffs have not met their burden of showing "in what manner [they] can amend [their] complaint and how that amendment will change the legal effect of [their] pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990)